

		Defendant filed an opposition on 4/6/26 which asserts that they have attempted to comply with the settlement agreement, but the collection agency incorrectly charged \$1,000 in March 2025, which was returned by Defendant's bank. Defendant also asserts the collection agency incorrectly stated that starting in April 2025 the monthly payment would change to \$1,750.00. Defendant states this was double the agreed-upon monthly payment of \$500 at the time. Defendant submits records which appear to show Defendant resumed making \$500 payments between November 2025 and February 2026. However, Plaintiff's Exhibit 2 reflects \$500 payments from May 2024 through May 2025, then a \$1,000 debit on 5/23/25 which was returned the same day, after which payments resumed in the amount of \$500/month through 7/23/25. Therefore, the admissible evidence shows that although there was an error in May 2025, it was promptly corrected and monthly payments resumed in the amount of \$500, after which Defendant ceased making payments in August 2025. Defendant has not explained how the May 2025 error caused them to stop making payments in August 2025 or excused such failure. Therefore, Plaintiff has sufficiently established Defendant's breach of the settlement agreement and the Court intends to enter judgment on the parties' settlement pursuant to Code of Civil Procedure section 664.6. However, the amount of judgment to be entered is unclear to the Court, since it appears Defendant resumed payments after allegedly ceasing payments in August 2026, and Plaintiff has not submitted a reply brief. Plaintiff's counsel shall file and serve a reply declaration, not to exceed five pages, no later than 6/26/26, stating what the total amount to be entered for judgment is as of the present date, and explaining the basis for their calculation. If the reply declaration is not timely filed, the motion will be denied without prejudice.
4	24-01420130 Carr vs. Siefkin	1) Motion to Be Relieved as Counsel of Record 2) Motion to Compel Answers to Form Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Production 5) Motion to Compel Response to Requests for Admissions The motions of plaintiff Natalie T. Carr for orders compelling responses to the second sets of form and special interrogatories and the first set of requests for production propounded to defendant Gregory Siefkin, deeming the matters in the first set of requests for admitted, and imposing a total monetary sanction of \$6086.25 against defendant and his attorney of record is GRANTED as specified below. Defendant is to serve verified responses to the second sets of form and special interrogatories and the first set of requests for production without objection and within 20 days of written notice of ruling.

		The matters in the first set of requests for admissions are deemed unless defendant serves a verification to the previously served response at or before the hearing A total monetary sanction of \$2340 is imposed against defendant and his attorney of record, payable to plaintiff and her attorney of record within 30 days.
9	24-01445830 <i>Gharibian vs. Volkswagen Group of America, Inc.</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Production 4) Motion to Deem Facts Admitted Motion No. 1 - Motion to Compel Responses to Form Interrogatories, Set One Plaintiff Levon Joseph Gharibian's Motion Compel Responses to Form Interrogatories, Set One as to Defendant Volkswagen Group of America, Inc. is CONTINUED to 12/17/26 at 10:00 a.m. in Department C33 to be heard together with Defendant's Motion for Relief from Waiver of Objections. The Court notes Defendant appears to have inadvertently filed two Oppositions to the Motion to Compel Responses to Special Interrogatories, Set One, rather than a separate Opposition to the Motion to Compel Responses to Form Interrogatories, Set One. (ROA 73 and 75.) The Court ORDERS Defendant to file a corrected Opposition per code prior to the continued hearing date. Motion No. 2 - Motion to Compel Responses to Special Interrogatories, Set One Plaintiff Levon Joseph Gharibian's Motion Compel Responses to Special Interrogatories, Set One as to Defendant Volkswagen Group of America, Inc. is CONTINUED to 12/17/26 at 10:00 a.m. in Department C33 to be heard together with Defendant's Motion for Relief from Waiver of Objections. Motion No. 3 - Motion to Compel Responses to Requests for Production, Set One Plaintiff Levon Joseph Gharibian's Motion Compel Responses to Requests for Production, Set One as to Defendant Volkswagen Group of America, Inc. is CONTINUED to 12/17/26 at 10:00 a.m. in Department C33 to be heard together with Defendant's Motion for Relief from Waiver of Objections.